

Special Notice – Notice of Intent to Sole Source

SOLICITATION NUMBER: 75N98026Q00265

TITLE: Service and Maintenance of Sony SH800SFP Cell Sorter

RESPONSE DATE: May 7, 2026, at 11:00 am EST.

1. PRIMARY POINT OF CONTACT:

Jaddua Johnston
jaddua.johnston@mail.nih.gov
Phone: 240-569-0006

I. INTRODUCTION:

THIS IS A PRE-SOLICITATION NON-COMPETITIVE (NOTICE OF INTENT) SYNOPSIS TO AWARD A CONTRACT WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME).

The National Center for Advancing Translational Sciences (NCATS), Functional Genomics Lab (FGL), owns one (1) Sony SH800SFP Cell Sorter (S/N 314054). To ensure reliable operation, maintain manufacturer specifications, and protect system integrity, the instrument requires scheduled preventive maintenance and corrective service performed directly by the Original Equipment Manufacturer (OEM), Sony Biotechnology.

Due to the proprietary nature of the system- including hardware, firmware, software, diagnostic tools, and microfluidic sorting chips- only the OEM has full and direct access to the resources necessary to maintain and repair the instrument in accordance with manufacturer standards. NCATS seeks a 12-month maintenance and service agreement with the OEM.

II. NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE and SET ASIDE STATUS

NAICS code 334516 Analytical Laboratory Instrument Manufacturing @ 1000. This acquisition is NOT set aside for small businesses.

III. REGULATORY AUTHORITY

This acquisition will be conducted using **FAR Part 12 – Acquisition of Commercial Items** in conjunction with **FAR Part 13 – Simplified Acquisition Procedures**, as applicable. The resultant contract will include all appropriate provisions and clauses in effect through the current Federal Acquisition Circular (FAC).

IV. STATUTORY AUTHORITY

This acquisition is being conducted under the authority of:

FAR 6.302-1 – Only One Responsible Source and No Other Supplies or Services

Will Satisfy Agency Requirements (41 U.S.C. 3304(a)(1))

V. DESCRIPTION OF REQUIREMENT:

A. PURPOSE AND OBJECTIVES:

The Sony SH800SFP is a microfluidics-based fluorescence-activated cell sorter (FACS) used to analyze and sort cell populations based on fluorescence characteristics. It is one of only two instruments at NCATS capable of depositing sorted cells directly into multi-well plates (6 to 384 well) and is therefore a mission-critical shared resource supporting multiple programs within the Division of Preclinical Innovation (DPI).

Given the instrument's complexity, including high-powered lasers, proprietary microfluidic systems, and manufacturer-controlled software, direct OEM service is required to ensure system performance, minimize downtime, and maintain user safety.

Period of Performance:

- Base Year: Begins upon award (12 months)

SCOPE OF WORK

General Requirements:

The Contractor shall provide all labor, personnel, materials, parts, tools, equipment, travel, and facilities necessary to perform the services described herein.

All services shall be performed directly by the Original Equipment Manufacturer (Sony Biotechnology). Use of third-party service integrators or subcontractors to fulfill the core service requirements is not permitted.

Specific Requirements:

The Contractor shall provide OEM-authorized service and maintenance for the Sony SH800SFP Cell Sorter, including:

Preventive Maintenance (PM):

- One (1) onsite preventive maintenance visit per 12-month period
- PM shall include inspection, calibration, alignment, cleaning, lubrication, and replacement of parts as necessary
- All PM shall be performed in accordance with OEM specifications, service manuals, and engineering standards

Repairs and Parts Replacement:

- Provide all replacement parts required to maintain the instrument within OEM specifications

- All parts must be OEM-certified and sourced directly from Sony Biotechnology
- All repairs shall be performed using OEM diagnostic tools and procedures

Technical Support and Response Time:

- Provide unlimited telephone, email, and remote diagnostic support
- If remote support is insufficient, provide onsite OEM service within 72 hours of dispatch

OEM Personnel Requirements:

- All services shall be performed by Sony Biotechnology factory-trained and certified service engineers
- Service personnel must have direct access to OEM proprietary diagnostic systems, firmware, and calibration tools

Software and Firmware Support:

- Provide software and firmware updates released during the contract period, where applicable
- Provide direct support for Sony proprietary software and system configuration

Shipping and Logistics:

- Contractor shall cover all shipping and handling costs for replacement parts and components

LEVEL OF EFFORT:

The Contractor shall use best efforts to provide all services covered under the maintenance and service agreement to ensure continuous system operability.

GOVERNMENT RESPONSIBILITIES

The Government shall provide reasonable access to the instrument for preventive maintenance, repairs, and support services.

DELIVERY OR DELIVERABLES

- Preventive maintenance and repair services as required
- Service Report following each visit, documenting work performed and certifying the instrument is in fully functioning condition

REPORTING REQUIREMENTS

Reports shall be emailed to Ken Cheng at ken.cheng1@nih.gov

OTHER CONSIDERATIONS

Travel:

Included at no additional cost to the Government

Key Personnel:

Not Applicable

Information System Security Plan:

Not Applicable

Data Rights:

Not Applicable

Section 508—Electronic and Information Technology Standards:

N/A

Publications and Publicity:

Not Applicable

Confidentiality of Information:

All the data will be confidential

VI. CONTRACTING WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME) DETERMINATION

The determination by the Government to award a contract without providing for full and open competition is based upon the market research conducted.

Specifically, **Sony Biotechnology, Inc.** is the only vendor in the marketplace that can provide the services required by NCATS. The equipment is proprietary to its manufacturer, **Sony Biotechnology, Inc.**, and this company is the sole provider of maintenance for this equipment.

In accordance with FAR part 10, extensive market research was conducted to reach this determination. Additionally, contacts with knowledgeable individuals both in industry and Government, as well as reviews of available product literature, revealed no other sources. Finally, a review of the GSA Advantage, Dynamic Small Business Search, and previous government acquisitions returned no results that meet all of the requirements. Therefore, only **Sony Biotechnology, Inc.** is capable of meeting the needs of this requirement.

The intended source is:

Sony Biotechnology, Inc.
1730 North 1st Street, 2NW
San Jose, CA 95112

VII. CLOSING STATEMENT

THIS SYNOPSIS IS NOT A REQUEST FOR COMPETITIVE PROPOSALS. However,

interested parties may identify their interest and capability to respond to this notice.

A determination by the Government not to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. All responsible sources may submit a capability statement, proposal, or quotation which shall be considered by the agency. The information received will normally be considered solely for the purposes of determining whether to proceed on a non-competitive basis or to conduct a competitive procurement. This notice does not obligate the Government to award a contract or otherwise pay for the information provided in response.

Responses to this notice shall contain sufficient information to establish the interested parties' bona-fide capabilities for fulfilling the requirement and include: unit price, list price, shipping and handling costs, the delivery period after contract award, the prompt payment discount terms, the F.O.B. Point (Destination or Origin), the Dun & Bradstreet Number (DUNS), the Taxpayer Identification Number (TIN), and the certification of business size. All offerors must have an active registration in the System for Award Management (SAM) www.sam.gov.

All responses must be received by the closing date and time of this announcement and must reference the solicitation number, **75N98026Q00265**. Responses must be submitted electronically to Jaddua Johnston, Contract Specialist at Jaddua.Johnston@nih.gov.